

Crl. Misc. Case No.80/2026.

Present: Smt. Poli Kataki,
Sessions Judge,
Lakhimpur, North Lakhimpur.

11.06.2026.

1. By filling petition u/s 482 of BNSS, 2023, accused/ petitioner namely, Md. Alal Uddin prays for granting pre-arrest bail in connection with Bihpuria PS Case No.78/2026 corresponding to GR Case No.426/2026 u/s 305 of BNS, 2023.

2. The bail petition is supported by an affidavit that no any bail petition is pending or disposed in any other higher court.

3. Heard learned counsel, Mr. Brojen Baruah appearing for the accused/ petitioner.

4. The brief of the case is that, on 22.05.2026, the complainant Md. Mofidul Islam lodged an FIR at Bihpuria Police Station alleging that on 21.05.2026 at around 7.30 PM, accused Md. Asiqul Islam had stolen 50 nos. of water pumps, multiple electrical fans, water taps, switches, electronic weighing items from his shop named, BM Hardware. The incident of theft was captured by his CCTV camera.

5. On the basis of said ejahar, police of Bihpuria PS registered a case vide Bihpuria PS Case No.78/2026 u/s 305 of BNS.

6. From perusal of the FIR, it is seen that the accused/ petitioner is not named in the FIR. A pre-arrest bail is maintainable even if the accused is not named in the

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FIR. However, in the instant case, it is seen that the case is registered u/s 305 of BNS, which is punishable with imprisonment for 7 (seven) years.

7. The Hon'ble Supreme Court in the case, **Satender Kumar Antil vs Central Bureau of Investigation, 2026 INSC 115**, decided on 15th January, 2026, observed that :

"32. The power of arrest under Section 35(6) read with Section 35(1)(b) of the BNSS, 2023 must be interpreted as a strict objective necessity, and not a subjective convenience for the police officer. It does not mean the police officer can arrest to simply ask questions. However, it means that the police officer must satisfy himself that the investigation, qua an offence punishable with imprisonment up to 7 years, cannot proceed effectively without taking the concerned individual into custody. Any interpretation to the contrary would clearly frustrate the purpose and legislative intent of Sections 35(1)(b) and Sections 35(3) to 35(6) of the BNSS, 2023.

33. On the basis of the interpretation given by us, we conclude as follows: a. An arrest by a police officer is a mere statutory discretion which facilitates him to conduct proper investigation, in the form of collection of evidence and, therefore, shall not be termed as mandatory. b. Consequently, the police officer shall ask himself the question as to whether an arrest is a necessity or not, before undertaking the said exercise. c. For effecting an arrest, qua an offence punishable with imprisonment up to 7 years, the mandate of Section 35(1)(b)(i) of the BNSS, 2023 along with any one of the conditions mentioned in Section 35(1)(b)(ii) of the BNSS, 2023 must be in existence. d. A notice under Section 35(3) of the BNSS, 2023 to an accused or any individual concerned, qua offences punishable with imprisonment up to 7 years, is the rule. e. Even if the circumstances warranting an arrest of a person are available in terms of the conditions mentioned under Section 35(1)(b) of the BNSS, 2023, the arrest shall not be undertaken, unless it absolutely warranted. f. Power of arrest under Section 35(6) read with Section 35(1)(b) of the BNSS, 2023, pursuant to a notice issued under Section 35(3) of the BNSS, 2023 is not a matter of routine, but an

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exception, and the police officer is expected to be circumspect and slow in exercising the said power.”

8. A notice u/s 35(3) of BNSS to an accused or any individual concerned, qua an offence punishable with imprisonment up to 7 years, is the rule, while an arrest u/s 35(6) read with Section 35(1)(b) of BNSS, is a clear exception.

9. In view of the decision of the Hon’ble Apex Court in **Satender Kumar Antil’s** case (Supra), if the accused petitioner is required for investigation of the instant case, the I.O of the case shall follow the guidelines enumerated in the said case.

10. Send a copy of this Order to the I.O.

11. This Misc. case is disposed of, accordingly.

Sessions Judge,
Lakhimpur, N.Lakhimpur.